

Item 1. *Agent's entitlement to commission

(*If this is an off the plan sale check Item 1 reflects the agreement about payment of commission & alter if needed.)

The Vendor agrees to pay the Agent the commission on the terms of this Authority if the Property is sold:

- 1.1 during the exclusive authority period by the Agent or by any other person (including the Vendor or another agent); or
- 1.2 during the continuing authority period by the Agent; or
- 1.3 to a person introduced to the Property by the Agent before the Vendor signed this Authority and to whom, as a result of the introduction, the Property is sold; or
- 1.4 within 120 days after the expiration of the exclusive authority period to a person introduced to the Property by the Agent within the exclusive authority period and to whom, as a result of the introduction, the Property is sold.

The commission is due and payable by the Vendor on the Property being sold.

Items 1.2, 1.3 and 1.4 will not apply if the Vendor may incur a liability to pay an agent a commission under an exclusive agency agreement signed by the Vendor with another agent after the expiration of the exclusive authority period.

(See the definition of "sold", "sale" and "sell" in GC 1.13)

Item 2. Continuing authority period

2.1 If there is a continuing authority period, it starts on the day after the day on which the exclusive authority period ends and

2.1.1 lasts for the number of days specified in the Particulars of Appointment, unless cancelled, and

2.1.2 on the day it starts, the Agent's exclusive appointment ends.

2.2 The Vendor may cancel the continuing authority period at any time by written notice to the Agent.

2.3 If the continuing authority period is cancelled, Item 1 continues to apply.

Item 3. Making a complaint

Any complaint relating to commission or outgoings can be made to the Director, Consumer Affairs Victoria GPO Box 4567, Melbourne, Victoria, 3001 or by telephoning 1300 73 70 30. Unless there are exceptional circumstances Consumer Affairs Victoria cannot deal with any dispute concerning commission or outgoings unless it is given notice of the dispute within 28 days of the client receiving an account for, or notice that the Agent has taken the amount in dispute, whichever is later.

Item 4. Dispute resolution

The Agent has procedures for resolving complaints and disputes arising from the operation of the Agent's estate agency practice. If a complaint or dispute arises, please ask to be informed about the procedures.

Item 5. Warranty of REIV membership

The Agent is a member of the REIV, at the date of this Authority. The Agent will confirm membership, if requested. If the warranty is false, this Authority is void. (This warranty cannot be deleted or modified)

OR

A *Commission (including GST) of \$ _____

A *commission (including GST) being the following % of the sale price: _____

Dollar amount of estimated commission: _____

which includes GST of \$ _____

if sold at a *GST inclusive *GST exclusive, not subject to GST price of \$ _____

(*Commission: Vendor please read the payment of commission terms at page 2, Item 1, before you sign this authority.)
(delete those that do NOT apply)

Marketing Expenses (including GST): _____

TOTAL \$ _____

Other Expenses \$ _____

The Marketing Expenses are payable on _____

* the signing of this Authority / * written request (delete the one that does NOT apply) DATE: _____

VENDOR (\$)

AGENT